

26CV01566 Brian M. Metcalf v. Alison E. Chase

County: santa-barbara

Division: Civil Law & Motion

Department: 4 SB-Anacapa

Hearing date: 2026-09-04

Motion: 1) Demurrer to Verified Complaint; 2) Defendant's Motion To File Portions of Demurrer and Exhibits Under Seal; 3) Plaintiff's Motion to Compel Further Responses to Special Interrogatories Set One And For Sanctions; 4) Plaintiff's Motion to Compe

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Tentative Ruling: Brian M. Metcalf v. Alison E. Chase

Case Number

26CV01566

Case Type

Civil Law & Motion

Hearing Date / Time

Fri, 09/04/2026 - 10:00

Nature of Proceedings

1) Demurrer to Verified Complaint; 2) Defendant's Motion To File Portions of Demurrer and Exhibits Under Seal; 3) Plaintiff's Motion to Compel Further Responses to Special Interrogatories Set One And For Sanctions; 4) Plaintiff's Motion to Compe

Tentative Ruling

For the reasons stated herein, the demurrer of defendant Alison E. Chase is overruled. Defendant shall, on or before September 18, 2026, file and serve an answer to plaintiff's verified complaint.

For the reasons stated herein, the motion of defendant Alison E. Chase to file portions of demurrer and exhibits under seal is denied. Unless defendant notifies the Clerk of the Court within 10 days of the court's order herein that the lodged record is to be filed unsealed, the Clerk of the Court is directed to permanently delete the lodged record.

For the reasons stated herein, the motion of plaintiff to compel further responses to special interrogatories set one is granted. On or before September 18, 2026, defendant shall serve code compliant verified further responses to plaintiff's set one

special interrogatory nos. 1 through 5, without the objections overruled herein except as to those based on privilege. The court awards sanctions in favor of plaintiff Brian M. Metcalf and against defendant Alison E. Chase and their counsel, Robert B. Forouzandeh, in the amount of \$150 payable to plaintiff. Payment of sanctions is due by October 4, 2026.

For the reasons stated herein, the motion of plaintiff to compel further responses to set one requests for production of documents is continued to November 6, 2026. The parties shall, no later than October 6, 2026, engage in a reasonable and good faith attempt to informally resolve each issue presented by that motion. On or before October 23, 2026, plaintiff and defendant shall file the joint status report, or if necessary file and serve the individual status reports, described herein.

Background:

As alleged in the verified complaint of plaintiff Brian M. Metcalf (Plaintiff):

While at or in his personal residence or vehicle, Plaintiff initiated or received verbal, audio, and visual communications with Alison E. Chase (Chase) that involved Plaintiff or which were confined to Plaintiff and other parties and participants. (Complaint, ¶¶ 8, 11-12.) Plaintiff and Chase conducted those communications through their cellular telephones. (Complaint, ¶¶ 9-10.) Given the circumstances in which the communications occurred, Plaintiff expected that the communications would be confined to the participants, private and confidential, and were not being recorded or overheard. (Complaint, ¶ 13.) Chase recently admitted that she had recorded some or all of the communications without Plaintiff's knowledge or consent. (Complaint, ¶ 34.)

Chase did not use features embedded in the communication mechanisms that would have automatically notified Plaintiff and other participants that the communications were being recorded. (Complaint, ¶ 16.) Plaintiff believes that, instead, Chase deliberately circumvented those features or used other electronic recording devices to avoid triggering the automatic notifications which would have revealed that communications were being recorded, and to conceal from Plaintiff, and prevent Plaintiff from discovering, that Chase was recording the communications. (Complaint, ¶¶ 17-18.)

Chase knew it was unlawful to record the communications without obtaining the consent of Plaintiff and other participants, and that recording the communications without obtaining that consent violated Plaintiff's right to privacy. (Complaint, ¶¶ 24-25, 32.) Though Plaintiff was a party to the communications, Chase did not notify or inform Plaintiff or any other parties or participants to the communications that she was recording the communications, and did not request or attempt to obtain the consent of Plaintiff or other parties or participants to record the communications. (Complaint, ¶¶ 19-23, 27-28, 30.) The other parties and participants also were not aware that Chase was recording the communications, and did not consent to Chase recording the communications. (Complaint, ¶¶ 29, 31.)

Plaintiff filed their verified complaint against Chase on March 10, 2026, asserting two causes of action: (1) unlawful recording of confidential communications under Penal Code section 632; and (2) unlawful recording of confidential communications under Penal Code section 632.7.

On June 26, Chase filed a motion for an order to file under seal (the motion to seal) portions of their demurrer to Plaintiff's verified complaint, including the exhibits to a request for judicial notice submitted in support of that demurrer; separately filed a demurrer to the verified complaint of Plaintiff in a public redacted version; and separately lodged that demurrer in an unredacted version conditionally under seal.

Plaintiff has filed an opposition to the demurrer of Chase. Plaintiff has not filed an opposition to the motion to seal.

On June 30, Plaintiff filed a motion pursuant to Code of Civil Procedure section 2030.300 (the Interrogatory Motion), for an order compelling Chase to provide further responses to Plaintiff's set one special interrogatories (the SI); and separately filed a motion pursuant to Code of Civil Procedure section 2031.310 (the RFP Motion), for an order compelling Chase to provide further responses to Plaintiff's set one requests for production of documents (the RFP), and to produce documents.

Chase has filed separate oppositions to the Interrogatory Motion and the RFP Motion.

The motion to seal, demurrer, Interrogatory Motion, and RFP Motion are each calendared for hearing on September 4, 2026.

Analysis:

(1) Demurrer

"In reviewing the sufficiency of a complaint against a general demurrer, we are guided by long-settled rules. 'We treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law. [Citation.] We also consider matters which may be judicially noticed.' [Citation.] Further, we give the complaint a reasonable interpretation, reading it as a whole and its parts in their context." (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) "If the complaint states a cause of action under any theory, regardless of the title under which the factual basis for relief is stated, that aspect of the complaint is good against a demurrer." (Quelimane Co. v. Stewart Title Guaranty Co. (1998) 19 Cal.4th 26, 38.)

As grounds for the demurrer, Chase contends that the complaint fails to allege which of the communications at issue were recorded; when any recordings occurred; or whether the recordings were of Zoom or telephone calls. Chase also contends that the complaint fails to allege any information on which Plaintiff relies to form the beliefs asserted in the complaint. For these reasons, the demurrer argues, the complaint is uncertain and unintelligible.

A demurrer may be made on the grounds that "[t]he pleading is uncertain." (Code Civ. Proc., § 430.10, subd. (f).) " '[U]ncertain' includes ambiguous and unintelligible." (Ibid.; see also Smith v. Kern County Land Co. (1958) 51 Cal.2d 205, 209.) "A special demurrer on the ground that [a pleading] is (a) ambiguous, (b) unintelligible, or (c) uncertain is insufficient unless the demurrer points out specifically wherein the pleading is ambiguous, uncertain or unintelligible." (Coons v. Thompson (1946) 75 Cal.App.2d 687, 690.)

To the extent the special demurrer of Chase describes where the complaint is purportedly uncertain, the court's review of those allegations shows that the pleading is not so incomprehensible that Chase cannot reasonably respond. (Morris v. JPMorgan Chase Bank, N.A. (2022) 78 Cal.App.5th 279, 292.) In addition, the description of the allegations contained in the demurrer indicates or suggests that the complaint is not so unintelligible or uncertain that Chase cannot understand the issues or the nature of the claims alleged by Plaintiff. (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245 ["a plaintiff is required only to set forth the essential facts of his case with reasonable precision and with particularity sufficient to acquaint a defendant with the nature, source and extent of his cause of action"].)

Moreover, "[a] special demurrer for uncertainty is not intended to reach the failure to incorporate sufficient facts in the pleading, but is directed at the uncertainty existing in the allegations actually made." (People v. Lim (1941) 18 Cal.2d 872, 883 (Lim).) To the extent the complaint is in some respects uncertain as to the specific dates or method by which the communications at issue were allegedly recorded by Chase, or the specific number of communications that were recorded, those "ambiguities can be clarified under modern discovery procedures." (Khoury v. Maly's of California, Inc. (1993) 14 Cal.App.4th 612, 616.)

The allegations of the complaint also give rise to a reasonable inference that Chase necessarily possesses knowledge of which, if any, communications were allegedly recorded by Chase, and when and how those communications were recorded. "Nor will a demurrer for uncertainty lie where the facts are presumptively within the knowledge of the demurring parties." (Dumm v. Pacific Valves (1956) 146 Cal.App.2d 792, 799.)

As to the allegations pleaded on information and belief, the demurrer points out that those allegations include that Chase recorded the communications, and that Chase used electronic devices to record those communications. (Demurrer at pp. 7 &

9-10.) As to those allegations, the demurrer argues that the complaint fails to allege facts demonstrating when the recorded communications occurred; whether those communications were by phone or other electronic means; or what information Plaintiff bases his belief that Chase recorded any conversations. (Ibid.)

“ [P]laintiff may allege on information and belief any matters that are not within his personal knowledge, if he has information leading him to believe that the allegations are true.” [Citation.]” (Doe v. City of Los Angeles (2007) 42 Cal.4th 531, 550.) Noted above, the complaint alleges, expressly and by inference, that Chase admitted to Plaintiff that she had recorded communications without Plaintiff’s knowledge or consent, and that Plaintiff was not automatically notified by any embedded mechanisms that the communications were being recorded. It is reasonable to infer from those allegations, which the demurrer “accepts as true” (Fox v. JAMDAT Mobile, Inc. (2010) 185 Cal.App.4th 1068, 1078), that the communications were recorded by the use of a “recording device” apart from those embedded in any communication device (Pen. Code, § 632).

Also noted above, the complaint further alleges that the communications purportedly recorded by Chase were initiated or received by Plaintiff, and included verbal, audio, or visual communications through the parties’ cellular telephones. (Pen. Code, § 632.7.) Those allegations are sufficient to show the means or manner by which the communications at issue occurred. For these and all reasons further discussed above, the complaint sufficiently alleges the information that leads Plaintiff to believe the allegations listed in the demurrer are true. (Brown v. USA Taekwondo (2019) 40 Cal.App.5th 1077, 1106-1107 [general discussion].)

“While it may be true that the allegations of this complaint do not present a complete picture of the factual situation surrounding the [alleged recording of communications by Chase], the facts upon which the [P]laintiff relies are stated with sufficient clarity. The allegations are neither uncertain, ambiguous nor unintelligible. Although the complaint should not be taken as a model of good pleading, it is sufficient as against both the general and special demurrers.” (Lim, supra, 18 Cal.2d at p. 883.) For these and all further reasons discussed above, the court will overrule the demurrer on the grounds stated, and require Chase to file and serve an answer the complaint.

Request for judicial notice:

In support of the demurrer, Chase requests judicial notice of a court order entered in an unrelated case in which Chase and Plaintiff are parties. Chase requests judicial notice of that court record ostensibly to show that the parties have not or could not have had any communication via telephone, Zoom, or any other medium alleged in the complaint after a certain date pursuant to a court order. (Memorandum at pp. 7-10.)

“The demurrer tests the pleading alone and not the evidence or other extrinsic matters which do not appear on the face of the pleading or cannot be properly inferred from the factual allegations of the complaint. [Citations.] This principle means that if the pleading sufficiently states a cause of action the demurrer cannot be granted on the basis of a showing of extrinsic matters by inference from attached exhibits, affidavits or otherwise except those matters which are subject to judicial notice.” (Executive Landscape Corp. v. San Vicente Country Villas IV Assn. (1983) 145 Cal.App.3d 496, 499.)

Chase fails to explain why the court record for which Chase requests judicial notice, or any information contained in that court record, appears on the face of Plaintiff’s complaint. The court’s own review of the complaint also reveals that its allegations do not give rise to any inference regarding the extrinsic matters of which Chase requests judicial notice.

Furthermore, “[t]he hearing on demurrer may not be turned into a contested evidentiary hearing through the guise of having the court take judicial notice of documents whose truthfulness or proper interpretation are disputable.” (Fremont Indemnity Co. v. Fremont General Corp. (2007) 148 Cal.App.4th 97, 114.) “[J]udicial notice of matters upon demurrer will be dispositive only in those instances where there is not or cannot be a factual dispute concerning that which is sought to be judicially noticed.” (Cruz v. County of Los Angeles (1985) 173 Cal.App.3d 1131, 1134.)

To the extent Chase contends that the court record at issue shows that it would have been impossible for Chase to have recorded any conversations after a certain date, that contention raises a factual dispute which the court does not resolve on

demurrer. Instead, “the facts alleged in the pleading are deemed to be true, however improbable they may be.” (Del E. Webb Corp. v. Structural Materials Co. (1981) 123 Cal.App.3d 593, 604.)

For all reasons discussed above, the court will deny plaintiff’s request for judicial notice.

(2) Motion to Seal

The records at issue in the motion to seal are an order and information from Santa Barbara County Superior Court case no. 21FL00510, which Chase contends is a parentage action between Chase and Plaintiff subject to the provisions of Family Code section 7643. Chase asserts that the demurrer references or relies on an order entered in that action, a copy of which is attached to the request for judicial notice submitted in support of the demurrer and further discussed above.

There exist procedural problems with the motion to seal.

Court rules require that a copy of the motion to seal “must be served on all parties that have appeared in the case. Unless the court orders otherwise, any party that already has access to the records to be placed under seal must be served with a complete, unredacted version of all papers as well as a redacted version.” (Cal. Rules of Court, rule 2.551(b)(2).)

The complaint filed by Plaintiff, and the court’s records, list Plaintiff’s address as 831 State Street, Santa Barbara, California 93101. The proof of service attached to the motion to seal identifies a different address for Plaintiff at which Plaintiff was served with that motion. (Motion to Seal at pdf p. 12.) There is no information or evidence presented in the moving papers, or existing in the court’s records, which demonstrates that the address listed in the proof of service attached to the motion to seal is an effective or proper address for service of papers on Plaintiff.

Even if Chase could present information or evidence showing why the address identified in the proof of service of the motion to seal is a valid address for service on Plaintiff, the proof of service further states that the motion to seal was served on Plaintiff by electronic transmission. (Motion to Seal at pdf p. 12.) Chase and her counsel, Robert B. Forouzandeh (attorney Forouzandeh), acknowledge that Plaintiff is a self-represented party. (Memorandum at p. 3, ll. 13-14; Forouzandeh Dec., ¶ 7.)

Though, generally, electronic service is authorized under Code of Civil Procedure section 1010.6, subdivision (a), as an unrepresented party, Plaintiff must expressly consent to receive electronic service by either “[s]erving a notice on all parties and filing the notice with the court...” or “[m]anifesting affirmative consent through electronic means with the court or the court’s electronic filing service provider, and concurrently providing the party’s electronic address with that consent for the purpose of receiving electronic service. The act of electronic filing shall not be construed as express consent.” (Code Civ. Proc., § 1010.6, subd. (c)(1)-(3).)

The court has no record showing that Plaintiff served and filed a notice consenting to receive electronic service in this action. Moreover, the pleadings, motions, and other documents filed by Plaintiff in this case do not list an electronic address for the purpose of receiving electronic service notwithstanding whether Plaintiff has filed any documents by electronic means. For these and all further reasons discussed above, it does not appear that Plaintiff has expressly consented, or manifested any affirmative consent, to receive electronic service of the motion to seal.

For all reasons discussed above, Chase has not appropriately or effectively served a copy of the motion to seal on Plaintiff, or provided Plaintiff with rule compliant written notice of the motion to seal, as required by California Rules of Court, rule 2.551, Code of Civil Procedure section 1010, and “fundamental principles of due process” (Jones v. Otero (1984) 156 Cal.App.3d 754, 757; California Advocates for Nursing Home Reform v. Smith (2019) 38 Cal.App.5th 838, 870.)

In addition, Plaintiff has not filed a response or opposition to the motion to seal in which Plaintiff argues the merits of that motion. For these reasons, the record does not reflect that Plaintiff has “waived any alleged defective service or inadequate notice.” (Carlton v. Quint (2000) 77 Cal.App.4th 690, 698.)

As the court will overrule the demurrer of Chase, and deny the request for judicial notice of the materials at issue in the motion to seal, and for all reasons discussed above, the court will, under the totality of the circumstances present here, deny the motion to seal. Unless Chase notifies the Clerk of the Court within 10 days of the court’s order herein that the lodged record is to be filed unsealed, the court will direct the Clerk of the Court to permanently delete the lodged record. (Cal. Rules of Court, rule 2.551(b)(6).)

(3) Interrogatory Motion

In support of the Interrogatory Motion, Plaintiffs states that they served Chase with the SI at issue on March 30, 2026. (Metcalf Dec., ¶ 2 & exhibit A.) Chase served responses to the SI on May 13. (Metcalf Dec., ¶ 3 & exhibit B.) After reviewing those responses, Plaintiff determined that Chase had not provided code compliant answers or attempted to supply the information sought through the SI. (Metcalf Dec., ¶ 4.) The deficiencies claimed by Plaintiff include that Chase responded to each of the SI with an effectively identical duplicate answer that repeated the same generalized objections, and limited the scope of the responses notwithstanding whether the SI included those limitations. (Ibid.)

In May and June 2026, Plaintiff met and conferred with Chase to resolve the disputes and obtain code-compliant answers. (Metcalf Dec., ¶¶ 5-6 & exhibits C-D.) Plaintiff identified the purported deficiencies, explained the failure to satisfy basic code requirements and to provide the required information, and supplied supporting authority. (Ibid.) In response, Chase’s counsel indicated that the responses of Chase to the SI would remain restricted to communications between Chase and Plaintiff within one year of the filing of this action. (Ibid.) Plaintiff asserted that it was improper to limit the responses in that manner. (Ibid.)

In support of the opposition of Chase to the Interrogatory Motion, attorney Forouzandeh states that they explained during the meet and confer process that under Penal Code sections 632 and 632.7, the only actionable communications are those to which Plaintiff was a party; and that any recording that predates the one-year limitations period purportedly applicable to Plaintiff’s statutory claims is not actionable and not a proper subject of discovery. (Forouzandeh Dec., ¶ 1; Metcalf Dec., exhibit C.) Attorney Forouzandeh offered to provide supplemental responses that removed the one-year qualifier from the responses of Chase and expanded those responses to encompass any Zoom communications involving Plaintiff and any other person. (Forouzandeh Dec., ¶ 2.) Plaintiff did not accept that offer. (Ibid.)

Attorney Forouzandeh further states that the parties again met and conferred in late June 2026, during which Plaintiff maintained his position that Chase must identify every Zoom communication Chase has ever recorded involving anyone at all, including communications solely involving Chase’s minor daughter, regardless of Plaintiff’s connection to them. (Forouzandeh Dec., ¶ 3; Metcalf Dec., exhibit D.)

For the reasons discussed herein, the court will grant the Interrogatory Motion.

The separate statement submitted in support of the Interrogatory Motion shows that the discovery at issue is SI nos. 1 through 5, which, respectively, request that Chase: (1) identify all “ZOOM COMMUNICATIONS” that Chase recorded; (2) identify all devices that Chase used to record “ZOOM COMMUNICATIONS”; (3) identify how Chase recorded “ZOOM COMMUNICATIONS”; (4) identify “all Zoom account(s)” that Chase used to conduct “ZOOM COMMUNICATIONS”; and (5) state all facts that support any contention that Chase could lawfully record “ZOOM COMMUNICATIONS”. (Sep. Stmt. at pp. 2, 6, 11, 16 & 21.) The capitalized term “ZOOM COMMUNICATIONS” is defined to mean “audio, visual, or video communications conducted through the Zoom application that involved” Plaintiff and his child. (Sep. Stmt. at p. 2 [SI no. 1].)

“The party to whom interrogatories have been propounded shall respond in writing under oath separately to each interrogatory by any of the following:

“(1) An answer containing the information sought to be discovered.

“(2) An exercise of the party’s option to produce writings.

“(3) An objection to the particular interrogatory.” (Code Civ. Proc., § 2030.210, subd. (a)(1)-(3).) Each response “shall be as complete and straightforward as the information reasonably available to the responding party permits.” (Code Civ. Proc. §2030.220, subd. (a).)

The responses of Chase to SI nos. 1 through 5 include numerous objections. (Sep. Stmt. at pp. 2-3, 7-8, 11-12, 16-17, & 21, 22.) Chase bears the burden to justify each of their objections to SI nos. 1 through 5, and to “show[] cause why the questions are not within the purview of the code section.” (West Pico Furniture Co. of Los Angeles v. Superior Court (1961) 56 Cal.2d 407, 422 (West Pico); Williams v. Superior Court (2017) 3 Cal.5th 531, 549.)

In the response to Plaintiff’s separate statement as to SI no. 1, Chase does not identify any specific objection. Instead, Chase generally asserts that their response to SI no. 1 “provides a code compliant response for the one year period prior to the filing of th[e] [c]omplaint”; that Plaintiff’s “only complaint is the temporal limitation”; that “[t]he one year limitation period corresponds to the statute of limitations for [Plaintiff’s] claims under Code of Civil Procedure section 340, subdivision (a)”; that “[a]ny recordings, if any exist, for the time period prior to one year before the filing of this action would not be actionable as a claim related to such would be time barred”; and that “[t]herefore, such recordings which are outside of the statute of limitations window, if any exist, which Chase disputes, would not be admissible or reasonably calculated to lead to the discovery of admissible evidence.” (Resp. Sep. Stmt. at p. 6.)

“[A]ny party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Discovery may relate to the claim or defense of the party seeking discovery or of any other party to the action. Discovery may be obtained of the identity and location of persons having knowledge of any discoverable matter, as well as of the existence, description, nature, custody, condition, and location of any document, electronically stored information, tangible thing, or land or other property.” (Code Civ. Proc., § 2017.010.) Chase does not appear to dispute that SI no. 1 is, generally, relevant to the subject matter of the complaint which arises from communications allegedly recorded by Chase without Plaintiff’s consent.

“For discovery purposes, information is relevant if it ‘might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement....’ [Citation.] Admissibility is not the test and information, unless privileged, is discoverable if it might reasonably lead to admissible evidence. [Citation.] These rules are applied liberally in favor of discovery [citation], and (contrary to popular belief), fishing expeditions are permissible in some cases. [Citation.]” (Gonzalez v. Superior Court (1995) 33 Cal.App.4th 1539, 1546, original italics.) Because the complaint alleges the recording of communications by Chase, the present record is sufficient to show that the discovery sought in SI no. 1 may lead to admissible evidence, or evidence that would assist the Plaintiff to evaluate their claims and the defenses of Chase, as well as to prepare for trial.

In regard to whether SI no. 1 should be limited to recordings made no later than one year prior to the filing of the complaint, “the scope of discovery extends to any information that reasonably might lead to other evidence that would be admissible at trial. ‘Thus, the scope of permissible discovery is one of reason, logic and common sense.’ [Citations.]” (Lipton v. Superior Court (1996) 48 Cal.App.4th 1599, 1612, original italics.) As a threshold matter, the court notes that SI no. 1 is appropriately limited to “Zoom communications” involving Plaintiff and his child. For these reasons, Chase has failed to explain why SI no. 1 seeks inadmissible recordings or is not reasonably calculated to lead to the discovery of admissible evidence.

In addition, though Chase asserts that the causes of action asserted in the complaint are subject to a one-year limitations period under Code of Civil Procedure section 340, subdivision (a), “statutes of limitation do not begin to run until a cause of action accrues.” (Fox v. Ethicon Endo-Surgery, Inc. (2005) 35 Cal.4th 797, 806 (Fox).)

“Generally speaking, a cause of action accrues at ‘the time when the cause of action is complete with all of its elements.’ [Citations.] An important exception to the general rule of accrual is the ‘discovery rule,’ which postpones accrual of a cause of action until the plaintiff discovers, or has reason to discover, the cause of action. [Citations.]

“A plaintiff has reason to discover a cause of action when he or she ‘has reason at least to suspect a factual basis for its elements.’ [Citations.] Under the discovery rule, suspicion of one or more of the elements of a cause of action, coupled with knowledge of any remaining elements, will generally trigger the statute of limitations period. [Citations.]... In so using the term “elements,” we do not take a hypertechnical approach to the application of the discovery rule. Rather than examining whether the plaintiffs suspect facts supporting each specific legal element of a particular cause of action, we look to whether the plaintiffs have reason to at least suspect that a type of wrongdoing has injured them.” (Fox, *supra*, 35 Cal.4th at pp. 806–807.)

Wholly absent from the opposition of Chase is any discussion of whether or when the causes of action asserted in the complaint accrued, or whether the accrual of those causes of action was postponed by the discovery rule discussed above.

For example, Penal Code section 632 provides for punishment by fine and imprisonment of “[a] person who, intentionally and without the consent of all parties to a confidential communication, uses an electronic amplifying or recording device to eavesdrop upon or record the confidential communication, whether the communication is carried on among the parties in the presence of one another or by means of a telegraph, telephone, or other device, except a radio[.]” (Pen. Code, § 632, subd. (a).) Even if any purportedly confidential communications were recorded more than one year prior to the filing of Plaintiff’s complaint, the complaint expressly alleges that Plaintiff did not discover that Chase was recording any communications “until [Chase] recently admitted she had recorded some of the communications without his knowledge or consent.” (Complaint, ¶ 24.)

“The Legislature has declared its purpose to protect the citizens of this state from secret monitoring of their private communications. It would be ‘incongruous and inconsistent’ with that stated aim to hold that the statute of limitations begins to run while the monitoring remains secret. [Citation.]” (Montalti v. Catanzariti (1987) 191 Cal.App.3d 96, 99–100; see also Community Cause v. Boatwright (1981) 124 Cal.App.3d 888, 899 [discussing tolling by fraudulent concealment, noting “a defendant should be estopped from taking advantage of his own wrong by asserting the statute of limitations.”].) The opposition of Chase presents no evidence or information showing when Plaintiff discovered the purported recording of any communications by Chase, or when the statute of limitations began to run. In addition, the present record gives rise to an inference that Plaintiff did not discover the recording of the communications at issue by Chase until at or near the time Plaintiff filed their complaint. For these and all further reasons discussed above, Chase has failed to show why the temporal limitation proposed by Chase as to the discovery sought in SI no. 1 is appropriate here.

For all reasons discussed above, Chase has failed to justify their objections to SI no. 1 on the grounds that the material sought is not admissible; that SI no. 1 is not reasonably calculated to lead to the discovery of admissible evidence; or that SI no. 1 is overbroad as to time and contains no temporal limitation.

For the same or similar reasons discussed above, the court is also not persuaded by the additional points raised in the memorandum submitted in support of Chase’s opposition to the Interrogatory Motion in regard to whether SI No. 1 falls within the scope of permissible discovery.

For example, though Chase contends that SI no. 1 includes Plaintiff’s child, is not limited to communications in which Plaintiff was a participant, and seeks identification of all communications Chase has ever recorded for other purposes not connected to Plaintiff, SI no. 1 is by its terms expressly limited to communications “that involved” Plaintiff “and” his child. (Sep. Stmt. at p. 2.) Absent reasoned argument showing why the use of the word “and” in the definition of “Zoom communications” set forth in SI no. 1 should not be taken conjunctively, the court interprets the use of the word “and” by Plaintiff to mean that the communications described in SI no. 1 must involve Plaintiff, and not just Plaintiff’s child. (Bates v. Poway Unified School Dist. (2022) 83 Cal.App.5th 907, 926 [generally discussing use of “and”]; People v. Reynoza (2024) 15 Cal.5th 982, 990–991 [same].)

The examples provided above are intended to be illustrative but not exhaustive. As Chase has failed for all reasons discussed above to justify their objections to SI no. 1, the court will overrule those objections except as to any objections which are based on privilege.

The substantive response of Chase to SI no. 1 states that Chase did not communicate with Plaintiff over Zoom and did not record any Zoom Communications between Chase and Plaintiff within one year of the filing of this action. (Sep. Stmt. at p. 3.) For the same or similar reasons further discussed above, and considering the manner in which Chase has limited the scope of SI no. 1, the answer of Chase to SI no. 1 does not appear to contain the information sought by Plaintiff, or to be "as complete and straightforward as the information reasonably available to [Chase] permits." (Code Civ. Proc., § 2030.210, subd. (a)(1), & § 2030.220, subd. (a); see also *Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 783, superseded by statute on another ground as stated in *Guzman v. General Motors Corp.* (1984) 154 Cal.App.3d 438, 444 ["a party may not provide deftly worded conclusionary answers designed to evade a series of explicit questions"].)

For all reasons discussed above, the court will grant the Interrogatory Motion as to SI no. 1, and require Chase to serve a code compliant, verified further response to that interrogatory without the objections overruled herein.

As to SI no. 2, Chase advances the same or similar points and arguments as those further discussed above. Therefore, the same reasoning and analysis apply.

In addition, though Chase contends that any request stated in SI no. 2 for information regarding the manufacturer, model, or serial number of any device used to record any communications is disproportionate to the needs of this case, the opposition of Chase does not present any "evidence showing the quantum of work required [or] an intent to create an unreasonable burden or that the ultimate effect of the burden is incommensurate with the result sought." (*West Pico*, supra, 56 Cal.2d at p. 417.)

For the same reasons discussed above, the court will overrule the objections of Chase to SI no. 2 except as to those based on privilege. For those same reasons, the court will grant the Interrogatory Motion as to SI no. 2, and require Chase to serve a code compliant, verified, further response without the objections overruled herein.

As to SI no. 3, the opposition of Chase to the Interrogatory Motion advances the same points and arguments, including that SI no. 3 suffers from the same overbreadth as SI no. 1; seeks an explanation of how Chase has recorded any Zoom communications regardless of Plaintiff's involvement or the applicable limitations period; and seeks information that has no connection to Plaintiff's claims. (Resp. Sep. Stmt. at p. 16; see also Opp. at p. 6.)

The same reasoning and analysis apply as to SI no. 3. For the same or similar reasons further discussed above, the court will overrule the objections of Chase to that interrogatory, except as to those based on privilege. Further, the court will grant the Interrogatory Motion as to SI no. 3, and will require Chase to serve a code compliant verified further response without the objections overruled herein.

In addition to the points discussed above, the opposition of Chase further contends that SI no. 4 seeks the identification of all of Chase's Zoom accounts, including account numbers and personal meeting identification numbers apart from those with which Chase communicated with Plaintiff. (Resp. Sep. Stmt. at p. 21; Opp. at p. 6.) For these reasons, Chase argues, the information sought in SI no. 4 is inadmissible, disproportionate to the needs of the case, and exposes Chase to security and privacy risks. (*Ibid.*)

As the "Zoom Communications" at issue in SI no. 4 also include only those communications involving Plaintiff "and" his child (sep. stmt. at p. 16), the same reasoning and analysis apply. For all reasons discussed above, the court will overrule the objections of Chase to SI no. 4, except as to those based on privilege, and will require Chase to provide a code compliant, verified, further response to SI no. 4 without the objections overruled herein.

As to SI no. 5, Chase contends that request is posed as an “incomplete hypothetical”; that because Chase did not record any Zoom conversations involving Plaintiff within the one-year limitations period, there are no facts supporting a legal contention which Chase does not make; that Chase cannot be compelled to hypothesize facts supporting a legal contention she does not assert; and that SI no. 5 is “compound” because it combines a request for facts with a request for a legal conclusion regarding the lawfulness of hypothetical conduct. (Resp. Sep. Stmt. at p. 26; Opp. at pp. 6-7.)

The same reasoning and analysis apply to any contention that the statute of limitations under Code of Civil Procedure section 340 permits Chase to narrow their response to SI no. 5 to a one-year period preceding the filing of the complaint.

Further, “[a]n interrogatory may relate to whether another party is making a certain contention An interrogatory is not objectionable because an answer to it involves an opinion or contention that relates to fact or the application of law to fact, or would be based on information obtained or legal theories developed in anticipation of litigation or in preparation for trial.” (Code Civ. Proc., § 2030.010, subd. (b).) “[T]he problem with legal contention questions has nothing to do with discoverability of the information sought. The information is clearly discoverable when sought by written interrogatory.” (Rifkind v. Superior Court (1994) 22 Cal.App.4th 1255, 1261.)

Considering the matters further discussed above in regard to whether the temporal scope of SI no. 5 may be limited to a one year period preceding the filing of the complaint, and for all further reasons discussed above, the contention of Chase that SI no. 5 requires Chase to respond to an incomplete hypothetical or state facts supporting a legal contention not made by Chase is without merit. For these and all further reasons discussed above, the court will overrule the objections of Chase to SI no. 5, and require Chase to serve a verified, code compliant further response without the objections overruled herein.

The court further notes that, to the extent Chase asserts that the SI require Chase to disclose information that would subject Chase to security or privacy risks, Chase has not filed a motion for a protective order as to any such information and ostensibly has not sought Plaintiff’s agreement to a protective order. (See, e.g., Code Civ. Proc., § 2017.020.) To the extent Chase contends that the SI should be limited based on any alleged intrusiveness, need for privacy, or harm that disclosure of any information might cause, the court’s ruling herein is without prejudice to any appropriate motion for a protective order that may be noticed, filed, and served by Chase in the future.

Monetary sanctions:

Plaintiff requests \$150 in monetary sanctions jointly and severally against Chase and her counsel, attorney Forouzandeh and Jennifer Gillon Duffy. In support of that request, Plaintiff states that they have incurred or expect to incur that amount in filing fees, service expenses, and in connection with the reply. (Metcalf Dec., ¶ 7.)

“The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2030.300, subd. (d).)

“A monetary discovery sanction may be based not only on attorney’s fees and costs, but also on any other reasonable expenses incurred. [Citation.] The term ‘reasonable expenses’ includes other costs directly related to the discovery misuse.” (Argaman v. Ratan (1999) 73 Cal.App.4th 1173, 1179.) Self represented litigants “may .. be awarded monetary discovery sanctions in the amount of those reasonable expenses actually incurred.” (Id. at p. 1180.)

As further discussed above, the opposition of Chase to the Interrogatory Motion was unsuccessful. The court also concludes that Chase did not act with substantial justification, and that the imposition of monetary sanctions under the circumstances present here would not be unjust. Further, the court finds that the amount of the sanctions requested in the Interrogatory Motion is reasonable. For these and all further reasons discussed above, the court will grant Plaintiff’s request, and award sanctions against Chase and her counsel, attorney Forouzandeh, in the amount of \$150.

The court will, for the same reasons discussed above, deny the request of Chase for monetary sanctions against Plaintiff.

(5) RFP Motion

The court's review of the papers filed by the parties in support of and in opposition to the RFP Motion indicates that the issues presented by that motion are the same as or similar to those presented in the Interrogatory Motion, including in regard to whether similar objections asserted in the responses of Chase to the RFP at issue are meritorious or justified; whether the RFP seek communications in which Plaintiff was not a participant; and whether the statute of limitations under Code of Civil Procedure section 340 justifies limiting the time period of the documents requested in the RFP to one year preceding the filing of the complaint, among other things.

Considering the court's ruling on the Interrogatory Motion as set forth above, and in the interests of judicial efficiency, the court will continue the RFP Motion to permit the parties an opportunity to engage in further efforts to informally resolve each issue presented by the RFP Motion. The court expects the parties to engage in a reasonable and good faith attempt to resolve those issues.

The court will also require the parties to, prior to the continued hearing date, file a joint status report, or if necessary file and serve individual status reports, describing the parties' efforts to informally resolve each dispute presented by the RFP Motion and what, if any, disputes remain as to each RFP at issue. The joint or individual status reports must describe, on a point-by-point basis as to each RFP identified in the separate statement submitted in support of the RFP Motion, each remaining dispute in the same manner as the separate statement described in California Rules of Court, rule 3.1345(c).

Judges

Judge Donna D. Geck

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